

Defendant fails to carry his initial burden of production to make a *prima facie* showing of material fact(s) showing that the elements of this cause of action cannot be established or that there is a complete defense to it. Therefore, the burden of production to make a *prima facie* showing of the existence of a triable issue of material fact does not shift to Plaintiff.

Defendant also fails to carry his burden of persuasion to show that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto.

Accordingly, the Court denies the MSJ as to Plaintiff's first cause of action for Open Book Account.

Remaining Common Count Theories Pled under First Cause of Action

Plaintiff has also pled alternate forms of common counts under the First Cause of Action. See Complaint filed April 2, 2025, Attachment, p. 3 (First Cause of Action).

The Court need not consider the alternate pled theories and whether Defendant is entitled to summary judgment as to such theories. Defendant failed to move for summary adjudication and the Court cannot grant summary judgment on less than all of the causes of action in a plaintiff's complaint. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 10:26. A single viable theory of recovery on a cause of action defeats Defendant's MSJ.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. The Court shall issue the order.

6. 9:00 AM CASE NUMBER: L25-03679
CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
*HEARING ON MOTION IN RE:
FILED BY: BANK OF AMERICA N.A.
TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on December 16, 2025.

Background

In light of the Court's ruling on a recent Motion for Relief from Waiver of Objections to Interrogatories and for Leave to Serve Late Responses on October 9, 2025 (the "Motion for Relief from Waiver") by defendant Tenisha M Gardner ("Defendant"), the Court ordered the parties to meet and confer regarding the Motion to Deem Admissions. See Order entered

December 2, 2025.

Disposition

The Court further finds and orders as follows:

1. **PARTIES ARE ORDERED TO APPEAR** to address their meet and confer regarding the Motion to Deem Admissions, unless the matter is resolved, in which case, the parties may advise the departmental clerk that the motion is to be dropped from calendar.

7. 9:00 AM CASE NUMBER: L25-04949
CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. TAYLOR LOVE
*HEARING ON MOTION IN RE: ORDER DEEMING REQ FOR ADMIS TO DEF ADMIT AND FOR MONETARY SANCTIONS
FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I
TENTATIVE RULING:

Plaintiff Southwood Financial LLC (“Plaintiff”) filed a Motion for Order Deeming Request for Admissions to Defendant Admitted and for Monetary Sanctions on September 29, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 16, 2025. The motion is opposed.

Background

Plaintiff served Defendant Taylor Love (“Defendant”) with a Requests for Admission (Set One). See Declaration of Laura M. D’Anna filed September 29, 2025 (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on July 10, 2025 by mail. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated July 10, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before August 14, 2025 (30 days from and after July 10, 2025 was August 9, 2025 and five calendar days thereafter fell on August 14, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Defendant filed an opposition paper. See Defendant’s Opposition to Plaintiff’s Motion to Deem Requests for Admission Admitted and for Monetary Sanctions filed December 2, 2025 (“Opposition”). Defendant indicates that “Defendant misunderstood that further discovery responses were needed given ongoing negotiations, but has now served verified responses.” See Opposition, p.2; see also Declaration of Taylor Love filed December 2, 2025 (“Opposition Declaration”) ¶7.

No reply papers have been filed with the Court.

Analysis